



Fisheries and Oceans
Canada

Pacific Region
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Pêches et Océans
Canada

Région du Pacifique
Direction de la gestion des écosystèmes
3190 route Hammond Bay
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May 15, 2026

Our file Notre référence
25-HPAC-01158

Kevin Simpson
Director Environment and Regulatory Affairs
Transportation Investment Corporation
401 W Georgia Street #2100
Vancouver, BC, V6B 5A1

Via email: kevin.simpson@ticorp.ca

**Subject: Fraser River Tunnel Project Preparatory Works, Fraser River, Richmond –
Application for a *Fisheries Act* Authorization is Complete – Time Limit Not Yet
Initiated**

Dear Kevin Simpson:

The Fish and Fish Habitat Protection Program (the Program) of Fisheries and Oceans Canada (DFO) has reviewed the content of your application for an authorization under paragraphs 34.4(2)(b) and 35(2)(b) of the *Fisheries Act* and is notifying you that your application is complete as of May 15, 2026. This means that your application meets the information requirements set out in subsection 2(1) of the *Authorizations Concerning Fish and Fish Habitat Protection Regulations* (the Regulations). Please note that although the application has been identified as complete as per the regulatory requirements, there are other considerations that must be addressed which may result in modifications to your proposal. In this case, you will be informed to submit new or amended information or documentation, as per paragraph 4(6)(c) of the Regulations.

We are also hereby notifying you that the 90 day time limit, within which a decision with respect to your application must be made, has ceased to apply for the following reason:

- As per paragraph 4(6)(d) of the *Authorizations Concerning Fish and Fish Habitat Protection Regulations*, consultation is required with Indigenous groups potentially affected by our decision under the authorization for works, undertakings or activities resulting in harmful alteration, disruption or destruction of fish habitat and/or the death of fish by means other than fishing. Through consultation with Indigenous groups, DFO may receive new information about impacts to fish and fish habitat and Aboriginal and treaty rights. Based upon the information received, the Program may discuss with you

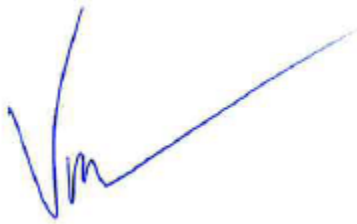
and recommend changes to your proposed works, undertakings or activities, and/or measures to avoid, mitigate and offset impacts to fish and fish habitat in order to address Indigenous concerns and impacts to Aboriginal and treaty rights. For more information on Indigenous consultation, please consult the attached document *Crown Duty to Consult and, when appropriate, Accommodate*. Please note that the conduct of Indigenous consultations is not bound by specific timelines and thus, may take time and you should plan accordingly.

The Program will notify you in writing of the next steps once the above-noted requirements are addressed.

If your plans have changed during the review of your application, you should contact this office to avoid any delays in the review of your application.

If you have any questions with the content of this letter, please contact Sara Jossul at our Nanaimo office at 236-334-3806 or by email at sara.jossul@dfo-mpo.gc.ca. Please refer to the file number referenced above when corresponding with the Program.

Sincerely,



Vance Mercer
A/Section Head
Fish and Fish Habitat Protection Program

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